

3.1. Fiction of fee payment in due time – fail-safe arrangement

If payment of a fee is considered not to have been made until after expiry of the period for payment, the period is considered to have been observed upon evidence that the payer took certain steps to initiate the payment within the period (Art. 7(3), (4) RFees, as amended with effect from 1.4.2020, see OJ 2020, A3). There is no longer a surcharge under Art. 7(3) RFees (T 842/90, J 20/00, J 25/12 concern the former surcharge).

Art. 7(3), (4) RFees also apply to the payment of a renewal fee, because in effect the due date for payment of this fee marks the last day of a period (R. 51(1) EPC; R. 37(1) EPC 1973) during which this fee can be validly paid (J 20/00).

Art. 7(3) RFees does not apply to key dates after which payments reaching the EPO are affected by a fee increase (J 18/85, OJ 1987, 356).

Art. 7(3) RFees does not apply where payment is made through (or, as in this case, a transfer order is given to) a banking establishment which is not in an EPC contracting state, even if the bank has a subsidiary in a contracting state (J 10/20, citing T 401/97).

A period for payment may be deemed to have been observed within the meaning of Art. 7(3) RFees (cf. Art. 8(3) RFees 1973) even if the receipt of the funds after the expiry of the period is no longer attributable to the original transfer order, but to another payment transaction initiated in the meantime (J 7/08; see also J 22/85, OJ 1987, 455).

4. Insufficient payments – small amounts lacking

A time limit for payment is in principle deemed to have been observed only if the full amount of the fee has been paid in due time (Art. 8, first sentence, RFees).

However, the EPO has the discretion, where this is considered justified, to overlook any small amounts lacking without prejudice to the rights of the person making the payment (Art. 8, fourth sentence, RFees).

It is established in the jurisprudence of the boards and in the practice of the Office that a "small amount" means around 10% of the relevant fee (see e.g. T 130/82, OJ 1984, 172; J 11/85, OJ 1986, 1; T 109/86 of 20.7.1987). In T 343/02 of 20.01.2003, an underpayment of less than 2% due to the unexpected deduction of bank charges was overlooked.

In T 290/90 (OJ 1992, 368) and J 27/92 (OJ 1995, 288), by contrast, it was held in the circumstances of each case that an underpayment of 20% of the relevant fee could be considered a small amount. Among the factors which the board took into account was that this percentage would allow the provision to be applied to cases in which a party mistakenly sought to take advantage of the (then generally available) 20% language-based fee reduction.

However, these have remained isolated cases. Already in T 905/90 (OJ 1994, 306, Corr. 556), the board found that the meaning of "smallness" could best be determined by

comparing the amount of shortfall with the amount of the full fee. A difference of 20% clearly could thus not, on purely arithmetical grounds, be regarded as small. It was with very small or trifling amounts that the former Art. 9 RFees (cf. Art. 8 RFees) was designed to deal so as to prevent a loss of rights where an inadvertent error of some kind had led to a slight underpayment of an amount due in respect of the relevant proceedings. This decision was confirmed in T 642/12, in which the board considered that "small amounts lacking" are to be read as "insignificant or negligible amounts". The legislator had presumed that a fee reduction of 20% pursuant to R. 6(3) EPC was not merely symbolic, but would effectively alleviate the burden of having to prepare translations. Therefore it could not have intended this fee reduction to be considered small in the sense of negligible or insignificant.

Furthermore, under the revised provisions of R. 6(3) – (7) EPC, Art. 14(1) RFees as in force from 1.4.2014 (see decision of the Administrative Council of 13 December 2013, OJ 2014, A4), the language-based fee reduction is set at 30% and applies only to the filing and examination fees and certain categories of applicant.

The question of what constitutes a "small amount lacking" has also arisen more recently in cases concerning the payment of the reduced rather than the full fee for appeal (Art. 2(1), item 11, RFees as in force from 1.4.2018) where the appellant was not entitled to the reduction. See in particular the analysis of the board in T 3023/18, and its conclusion that the underpayment of the appeal fee by about 17% was not "small" within the meaning of Art. 8, fourth sentence, RFees. According to the board, it was furthermore reasonable to assume that the legislator saw the fee reduction under Art. 2(1), item 11, RFees as being of genuine financial assistance to the listed categories of person, and not merely as symbolic. See, similarly, T 2422/18, T 2620/18).

The board in J 25/12 did not doubt that the underpayment in that case could be regarded as a small amount, but stressed that the EPO could exercise its discretion to overlook small amounts only if justified. This was not so here since the representative had been informed about the changed fee rates and invited to pay the amount lacking within a time limit – which, however, he had failed to do. The board in T 2620/18 similarly observed that there were in any event two cumulative requirements in Art. 8, last sentence, RFees, namely that the amount lacking be "small" and that overlooking it be "justified". It conceded that overlooking the underpayment might be justified in the case in hand, because the appeal fee had later been paid in full, but it could not do so because the difference between that full fee and the amount initially paid was not small.

5. Fee reductions

5.1. Filing fee, examination fee

Art. 14(1) RFees defines the percentage of the language-related reduction of the filing fee and the examination fee provided for in R. 6(3) EPC. For relevant decisions, see chapter III.F.6.

Art. 14(2) RFees defines the percentage reduction of the examination fee for certain Euro-PCT applications having entered the regional phase. The reduction does not apply to divisional applications (J 1/09, confirming J 14/07).

5.2. Fee for appeal

Under Art. 2(1), item 11, RFees as in force from 1.4.2018, the persons and entities listed in R. 6(4) and (5) EPC pay a reduced fee for appeal (see decision of the Administrative Council of 13.12.2017, OJ 2018, A4; also notice from the EPO, OJ 2018, A5). Relevant board decisions are reported in chapter V.A.2.5.4c.

6. Fee refunds

As a general rule, once a fee has been validly paid it will not be refunded, unless a refund is provided for in the EPC or Rules relating to Fees.

In T.2069/18, the board held that the examining division had rightly found the renewal fees in issue to have been duly incurred and imposed. The refund arrangements laid down in e.g. Art. 9 to 11 RFees, albeit inapplicable in the case in hand, showed that the EPC 1973 legislator had provided for the possibility of refunds in certain cases. Otherwise too, the EPO regularly refunded payments made without a legal basis of its own accord, on the grounds of equity. Renewal fees which had been duly imposed and paid were not retrospectively deprived of their legal basis because the EPO had been slow to act in examination proceedings. See also T.1284/09.

See also the relevant chapters of the book for decisions on the refund of specific procedural fees.

6.1. Partial refund of the examination fee

The Legal Board ruled in J.25/10 (OJ 2011, 624, see headnote) that following the withdrawal of a European patent application, a refusal by the examining division of a request for a 75% refund of the examination fee, on the basis that substantive examination has already begun (Art. 11(b) RFees), must be based on facts which objectively demonstrate that this is so. See also J.9/10. Following these two decisions the EPO made adjustments to the system for refunding search and examination fees – see notice dated 29.1.2013 (OJ 2013, 153). For Art. 11 RFees, as in force from 1.7.2016, see OJ 2016, A48 and OJ 2016, A49.

V. Representation

1.	Overview	1061
2.	Professional representatives	1062
2.1.	List of professional representatives (Article 134(1) EPC)	1062
2.2.	Duty of persons without residence nor place of business within a contracting state to be represented by a professional representative	1063
2.3.	Professional representatives during the transitional period	1064
2.4.	Procedural steps performed by a person other than the professional representative	1064
2.5.	Submissions by a professional representative after transfer of opponent status	1065
3.	Legal practitioners entitled to act as professional representative	1066
3.1.	General issues	1066
3.2.	Register of legal practitioners	1066
3.3.	Qualifying conditions according to Article 134(8) EPC	1067
3.3.1.	Representation by a legal practitioner	1067
3.3.2.	Common representative	1067
4.	Authorisations for appointment of a representative	1068
4.1.	Filing of the authorisation	1069
4.2.	General authorisations	1071
4.3.	Sub-authorisations	1072
4.4.	Authorisation of an association of representatives	1073
4.5.	Termination of authorisation	1074
5.	Oral submissions by an accompanying person	1075
5.1.	Enlarged Board's landmark decision G 4/95	1075
5.2.	Application of the case law established by the Enlarged Board	1076
5.2.1.	Introduction	1076
5.2.2.	Trainee patent attorneys	1077
5.2.3.	Distinction between party to proceedings and accompanying person	1077
5.2.4.	Inventor as accompanying person	1078
5.2.5.	Name, qualifications and subject-matter to be specified	1079
5.2.6.	Oral submissions to be requested sufficiently in advance	1080
5.2.7.	Exceptional circumstances	1081
5.2.8.	Professional representative's responsibility	1081
5.2.9.	Procedural objection under R. 106 EPC	1082
5.3.	Oral submissions by former members of the boards of appeal	1082
5.4.	Oral submissions by qualified patent lawyers of non-EPC contracting states	1083

1. Overview

Art. 133 EPC lays down the general principles applying to representation. Art. 134 EPC governs representation before the EPO. Art. 134a EPC concerns the Institute of Professional Representatives before the EPO.

Art. 133 and 134 EPC together with R. 152 EPC and the decision of the President of the EPO dated 12 July 2007 on the filing of authorisations (OJ SE 3/2007, 128, L.1.) provide a complete, self-contained code of rules of law on the subject of representation in proceedings established by the EPC. Art. 133(1) EPC stipulates that, subject to Art. 133(2) EPC, no person is compelled to be represented by a professional representative in proceedings established by the EPC. However, according to Art. 133(2) EPC, natural persons not having their residence in an EPC contracting state must be represented by a professional representative (Art. 134(1) EPC) or a legal practitioner (Art. 134(8) EPC) and act through him in all proceedings established by the EPC, other than in filing the European patent application (**T. 578/14**).

The Guidelines for Examination in the EPO (March 2022 version) contain detailed information on the practice relating to representation, most notably in: A-III, 2; A-VIII, 1 and D-I, 7.

2. Professional representatives

2.1. List of professional representatives (Article 134(1) EPC)

Art. 134(1) EPC stipulates that professional representation of natural or legal persons in proceedings established by the EPC may only be undertaken by professional representatives whose names appear on a list maintained for this purpose by the EPO. The requirements for entry in this list are laid down in Art. 134(2) EPC. In the context of Art. 134(1) EPC, it is also useful to consult R. 154 EPC "Amendment of the list of professional representatives", as well as the related decision of the President, OJ 2013, 600, notice from the EPO, OJ 2015, A55, and Administrative Council decision, OJ 2018, A57.

The objective of the list of professional representatives is to provide a survey of particularly qualified representatives in patent matters (**D. 14/93**, OJ 1997, 561).

In **J. 1/78** (OJ 1979, 285) the appellant was entered on the list of professional representatives before the EPO under the letter "V" as "von F., A.". The object of his appeal was to obtain a ruling which would enable him to be entered under the letter "F" as, for example, in the telephone directory. The decision found that the entry was made in accordance with the principles laid down by the President of the EPO whereby the full surname must be entered in alphabetical order. Under German law, former titles of nobility ("von") form part of the surname. The board noted that the purpose of entry on the list was to confer upon the person whose name was entered the right to appear in the European patent grant procedure. A distinction had to be made between entry for the purposes of conferring a right and publication of the list, which latter was not prescribed in the EPC 1973. The EPO issues a directory from time to time for the purposes of meeting public demand for information. In this directory, the person entered on the list could be allowed an additional entry under another letter should he so desire.